ANNOTATED AGENDA

BERKELEY CITY COUNCIL MEETING

Tuesday, June 25, 2024
6:00 PM

SCHOOL DISTRICT BOARD ROOM - 1231 ADDISON STREET, BERKELEY, CA 94702

JESSE ARREGUIN, MAYOR

Councilmembers:

DISTRICT 1 – RASHI KESARWANI
DISTRICT 2 – TERRY TAPLIN
DISTRICT 3 – BEN BARTLETT
DISTRICT 4 – IGOR TREGUB
DISTRICT 5 – SOPHIE HAHN
DISTRICT 6 – SUSAN WENGRAF
DISTRICT 7 – CECILIA LUNAPARRA
DISTRICT 8 – MARK HUMBERT

This meeting will be conducted in a hybrid model with both in-person attendance and virtual participation. If you are feeling sick, please do not attend the meeting in person.

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To submit a written communication for the City Council's consideration and inclusion in the public record, email council@berkeleyca.gov.

This meeting will be conducted in accordance with the Brown Act, Government Code Section 54953 and applicable Executive Orders as issued by the Governor that are currently in effect. Any member of the public may attend this meeting. Questions regarding public participation may be addressed to the City Clerk Department (510) 981-6900. The City Council may take action related to any subject listed on the Agenda.

Pursuant to the City Council Rules of Procedure and State Law, the presiding officer may remove, or cause the removal of, an individual for disrupting the meeting. Prior to removing an individual, the presiding officer shall warn the individual that their behavior is disrupting the meeting and that their failure to cease their behavior may result in their removal. The presiding officer may then remove the individual if they do not promptly cease their disruptive behavior. "Disrupting" means engaging in behavior during a meeting of a legislative body that actually disrupts, disturbs, impedes, or renders infeasible the orderly conduct of the meeting and includes, but is not limited to, a failure to comply with reasonable and lawful regulations adopted by a legislative body, or engaging in behavior that constitutes use of force or a true threat of force.

Preliminary Matters

Roll Call: 6:15 p.m.

Present: Kesarwani, Taplin, Bartlett, Tregub, Hahn, Lunaparra, Humbert, Arreguin

Absent: Wengraf

Councilmember Wengraf at 6:41 p.m.

Report from Closed Session
The Council met in closed session on June 24, 2024 and voted to authorize the City Attorney to execute an agreement to opt in to the national opioid litigation settlement with Kroger: *In Re: National Prescription Opiate Litigation*, United States District Court, Northern District of Ohio, Eastern Division, MDL 2804, Case No. 1:17-MD-2804.

Ceremonial Matters

1. Swearing-In of Newly-Elected District 4 Councilmember Igor Tregub
2. Honoring City Manager Dee Williams-Ridley for Her Years of Service to Berkeley

City Manager Comments:

The City Manager recognized the employee members of Team Unity, an employee group tasked with finding new programs for employee recognition as part of the Employer of Choice Initiative.

Public Comment by Employee Unions

Recess 7:12 p.m. – 7:23 p.m.

Public Comment on Non-Agenda Matters: 10 speakers.

Consent Calendar

Public Comment on Consent Calendar and Information Items Only: 38 speakers.

Action: M/S/C (Arreguin/Tregub) to accept an urgency item from the City Manager pursuant to Government Code Section 54954.2(b)(2) entitled Contract Amendment: California Lake Research Partners, Inc. for Community Survey.
Vote: All Ayes.

Action: M/S/C (Arreguin/Hahn) to adopt the Consent Calendar in one motion except as indicated.
Vote: All Ayes.

Consent Calendar

Urgent Item: Contract Amendment: California Lake Research Partners, Inc. for Community Survey
From: City Manager
Recommendation: Adopt a Resolution authorizing the City Manager or designee to amend the contract with California Lake Research Partners to add $40,000 for a total not-to-exceed contract amount of $80,000.
Financial Implications: See report
Contact: Anne Cardwell, City Manager's Office, (510) 981-7000, Scott Ferris, Parks, Recreation and Waterfront, (510) 981-6700
Action: Adopted Resolution No. 71,394–N.S.

1. **FY 2025 Tax Rate: Fund Debt Service on Neighborhood Branch Library Improvements Project General Obligation Bonds (Measure FF, November 2008 Election)**
From: City Manager
Recommendation: Adopt second reading of Ordinance No. 7,912–N.S. setting the FY 2025 tax rate for funding the debt service on the Neighborhood Branch Library Improvements Project General Obligation Bonds (Measure FF, November 2008 Election) at 0.0048%.
First Reading Vote: All Ayes.
Financial Implications: See report
Contact: Henry Oyekanmi, Finance, (510) 981-7300
Action: Adopted second reading of Ordinance No. 7,912–N.S.

2. **FY 2025 Tax Rate: Fund the Debt Service on the Street and Watershed Improvements General Obligation Bonds (Measure M, November 2012 Election)**
From: City Manager
Recommendation: Adopt second reading of Ordinance No. 7,913–N.S. setting the FY 2025 tax rate funding the debt service on the Street and Integrated Watershed Improvements General Obligation Bonds (Measure M, November 2012) at 0.0064%.
First Reading Vote: All Ayes.
Financial Implications: See report
Contact: Henry Oyekanmi, Finance, (510) 981-7300
Action: Adopted second reading of Ordinance No. 7,913–N.S.

3. **FY 2025 Tax Rate: Fund Debt Service on 2015 Refunding General Obligation Bonds (Measures G, S & I)**
From: City Manager
Recommendation: Adopt second reading of Ordinance No. 7,914–N.S. setting the FY 2025 tax rate funding the debt service on the 2015 consolidation of Measures G, S and I (General Obligation Bonds - Elections of 1992, 1996 and 2002) at 0.0111%.
First Reading Vote: All Ayes.
Financial Implications: See report
Contact: Henry Oyekanmi, Finance, (510) 981-7300
Action: Adopted second reading of Ordinance No. 7,914–N.S.

Consent Calendar

4. FY 2025 Tax Rate: Fund the Debt Service on the Infrastructure and Facilities General Obligation Bonds (Measure T1, November 2016 Election)
From: City Manager
Recommendation: Adopt second reading of Ordinance No. 7,915–N.S. setting the FY 2025 tax rate funding the debt service on the Infrastructure and Facilities Improvements General Obligation Bonds (Measure T1, November 2016) at 0.0136%.
First Reading Vote: All Ayes.
Financial Implications: See report
Contact: Henry Oyekanmi, Finance, (510) 981-7300
Action: Adopted second reading of Ordinance No. 7,915–N.S.

5. FY 2025 Tax Rate: Fund the Debt Service on the Affordable Housing General Obligation Bonds (Measure O, November 2018 Election)
From: City Manager
Recommendation: Adopt second reading of Ordinance No. 7,916–N.S setting the FY 2025 tax rate funding the debt service on the Affordable Housing General Obligation Bonds (Measure O, November 2018) at 0.0250%.
First Reading Vote: All Ayes.
Financial Implications: See report
Contact: Henry Oyekanmi, Finance, (510) 981-7300
Action: Adopted second reading of Ordinance No. 7,916–N.S.

6. FY 2025 Tax Rate: Business License Tax on Large Non-Profits
From: City Manager
Recommendation: Adopt second reading of Ordinance No. 7,917–N.S. setting the FY 2025 tax rate for Business License Tax on large non-profits at $0.8207 (82.07 cents) per square foot of improvements.
First Reading Vote: All Ayes.
Financial Implications: See report
Contact: Henry Oyekanmi, Finance, (510) 981-7300
Action: Adopted second reading of Ordinance No. 7,917–N.S.

7. FY 2025 Tax Rate: Fund the Maintenance of Parks, City Trees and Landscaping
From: City Manager
Recommendation: Adopt second reading Ordinance No. 7,918–N.S setting the FY 2025 tax rate for funding all improvements for the maintenance of parks, City trees, and landscaping in the City of Berkeley at $0.2210 (22.10 cents) per square foot of improvements.
First Reading Vote: All Ayes.
Financial Implications: See report
Contact: Henry Oyekanmi, Finance, (510) 981-7300
Action: Adopted second reading of Ordinance No. 7,918–N.S.

Consent Calendar

8. FY 2025 Tax Rate: Fund the Provision of Emergency Medical Services (Paramedic Tax)
From: City Manager
Recommendation: Adopt second reading of Ordinance No. 7,919–N.S. setting the FY 2025 tax rate for funding the provision of emergency medical services to Berkeley residents at $0.0468 (4.68 cents) per square foot of improvements.
First Reading Vote: All Ayes.
Financial Implications: See report
Contact: Henry Oyekanmi, Finance, (510) 981-7300
Action: Adopted second reading of Ordinance No. 7,919–N.S.

9. FY 2025 Tax Rate: Fund Emergency Services for the Severely Disabled (Measure E)
From: City Manager
Recommendation: Adopt second reading of Ordinance No. 7,920–N.S. setting the FY 2025 tax rate for funding the provision of emergency services for the disabled at $0.02094 (2.094 cents) per square foot of improvements.
First Reading Vote: All Ayes.
Financial Implications: See report
Contact: Henry Oyekanmi, Finance, (510) 981-7300
Action: Adopted second reading of Ordinance No. 7,920–N.S.

10. FY 2025 Tax Rate: Fund Firefighting, Emergency Medical Response and Wildfire Prevention (Measure FF)
From: City Manager
Recommendation: Adopt second reading of Ordinance No. 7,921–N.S. setting the FY 2025 tax rate for funding Firefighting, Emergency Medical Response and Wildfire Prevention (Measure FF) in the City of Berkeley at the annual tax rate of $0.1220 (12.20 cents) per square foot of improvements.
First Reading Vote: All Ayes.
Financial Implications: See report
Contact: Henry Oyekanmi, Finance, (510) 981-7300
Action: Adopted second reading of Ordinance No. 7,921–N.S.

11. Amendments to Berkeley's Municipal Code Chapter 2.24 to Establish Whistleblower Program Authority
From: Auditor
Recommendation: Adopt second reading of ordinance No. 7,922–N.S amending City Auditor's Office (BMC Chapter 2.24) authority and scope of work to formally establishing the City Auditor's authority to receive and refer reports of fraud, waste, or abuse as well as investigate those reports and any reports of retaliation against whistleblowers.
First Reading Vote: All Ayes.
Financial Implications: See report
Contact: Jenny Wong, Auditor, (510) 981-6750
Action: Adopted second reading of Ordinance No. 7,922–N.S.

Consent Calendar

12. Minutes for Approval
From: City Manager
Recommendation: Approve the minutes for the Council meetings of April 26, 2024 (closed), May 6, 2024 (closed), May 7, 2024 (special) (4 p.m. & 4:15 p.m.), May 7, 2024 (regular), May 10, 2024 (closed), May 13, 2024 (closed), May 14, 2024 (special), May 14, 2024 (regular), May 21, 2024 (closed), May 21, 2024 (special), May 21, 2024 (regular), May 24, 2024 (special)
Financial Implications: None
Contact: Mark Numainville, City Clerk, (510) 981-6900
Action: Approved the minutes as submitted.

13. Contract: Live Free for Gun Violence Intervention and Prevention Program: Custom Notification and Street Outreach Services
From: City Manager
Recommendation: Adopt a Resolution authorizing the City Manager to execute a contract and any amendments with Live Free USA (Contractor) to design, implement, and assess the Custom Notification and Street Outreach Services component of the City of Berkeley's Gun Violence Intervention and Prevention Program for a two-year pilot, in an amount not to exceed $2,000,000 ($1,000,000 per fiscal year).
Financial Implications: See report
Contact: Carianna Arredondo, City Manager's Office, (510) 981-7000
Action: Adopted Resolution No. 71,395–N.S.

14. FY 2025 Tax Rate: Fund Fire Protection and Emergency Response and Preparedness (Measure GG)
From: City Manager
Recommendation: Adopt first reading of an Ordinance setting the FY 2025 tax rate for funding Fire Protection and Emergency Response and Preparedness in the City of Berkeley at the rate of $0.0629 (6.29 cents) per square foot of improvements for dwelling units and setting the rate for all other property at $0.09519 (9.519 cents) per square foot of improvements.
Financial Implications: See report
Contact: Henry Oyekanmi, Finance, (510) 981-7300; David Sprague, Fire, (510) 981-3473
Action: Adopt first reading of Ordinance No. 7,925–N.S. Second reading scheduled for July 9, 2024.

Consent Calendar

15. Formal Bid Solicitations and Request for Proposals Scheduled for Possible Issuance After Council Approval on June 25, 2024
From: City Manager
Recommendation: Approve the request for proposals or invitation for bids (attached to staff report) that will be, or are planned to be, issued upon final approval by the requesting department or division. All contracts over the City Manager's threshold will be returned to Council for final approval.
Financial Implications: See report
Contact: Henry Oyekanmi, Finance, (510) 981-7300
Action: Approved recommendation.

16. Appropriations Limit for FY 2025
From: City Manager
Recommendation: Adopt a Resolution establishing the appropriations limit at $353,538,057 for FY 2025 pursuant to Article XIIIB of the Constitution of the State of California based on the calculations for the appropriations limit.
Financial Implications: See report
Contact: Henry Oyekanmi, Finance, (510) 981-7300
Action: Adopted Resolution No. 71,396–N.S.

17. FY 2025 Reaffirming the Investment Policy and Designation of Investment Authority
From: City Manager
Recommendation: Adopt a Resolution reaffirming the Investment Policy (no revisions are recommended) and to confirm the delegation of investment authority to the Director of Finance to make investments for FY 2025.
Financial Implications: See report
Contact: Henry Oyekanmi, Finance, (510) 981-7300
Action: Adopted Resolution No. 71,397–N.S.

18. Agreement: City of El Cerrito Fire and Emergency Services
From: City Manager
Recommendation: Adopt a Resolution authorizing the City Manager to execute a memorandum of understanding with the City of El Cerrito to provide year-round automatic aid in each jurisdiction for fire, technical rescue, emergency medical, and other emergency response, rescinding Resolutions No. 68,820-N.S and 66,821-N.S. and maintaining the existing mutual response area agreement until the year-round fire and emergency services agreement is ratified.
Financial Implications: See report
Contact: David Sprague, Fire, (510) 981-3473
Action: Adopted Resolution No. 71,398–N.S.

Consent Calendar

19. Contract: Vector Solutions for Fire Records Management Software
From: City Manager
Recommendation: Adopt a Resolution authorizing the City Manager to execute a piggyback contract and any amendments with Vector Solutions using the National Purchasing Partners (NPP) contract No. PS21095 in an amount not to exceed $200,000 for Fire Department Records Management from July 1, 2024 through March 24, 2027 with one (1), three (3) year option to extend.
Financial Implications: See report
Contact: David Sprague, Fire, (510) 981-3473
Action: Adopted Resolution No. 71,399–N.S.

20. Purchase Order: Wildfire Defense Mesh
From: City Manager
Recommendation: Adopt a Resolution authorizing the City Manager to execute a Purchase Order with Wildfire Defense Mesh from June 1, 2024 until May 31, 2027 in an amount not to exceed $400,000 with an option to extend for an additional three (3) years.
Financial Implications: See report
Contact: David Sprague, Fire, (510) 981-3473
Action: Adopted Resolution No. 71,400–N.S.

21. Prioritizing City-Owned Land for Affordable Housing and Noticing of Potential Disposition of City-Owned Land
From: City Manager
Recommendation: Adopt a Resolution affirming the City's commitment to prioritize City-owned land for affordable housing and publicly notice the potential disposition of City-owned land consistent with the Surplus Lands Act.
Financial Implications: See report
Contact: Scott Gilman, Health, Housing, and Community Services, (510) 981-5400
Action: Adopted Resolution No. 71,401–N.S.

22. Approving the Revised Operating Budget for Golden Bear Homes
From: City Manager
Recommendation: Adopt a Resolution approving the revised operating budget for Golden Bear Homes (1620 San Pablo Avenue), with the understanding that the increased cost of operating the Homekey project may necessitate a future reservation of approximately $550,000 in City funds, if other operating sources are not identified for the project.
Financial Implications: See report
Contact: Scott Gilman, Health, Housing, and Community Services, (510) 981-5400
Action: Adopted Resolution No. 71,402–N.S.

Consent Calendar

23. Additional Development Funding Reservation for 1740 San Pablo Avenue
From: City Manager
Recommendation: Adopt a Resolution:
1. Reserving an additional $4,496,669 in Housing Trust Fund (HTF) program funds for the development loan agreement for BRIDGE Housing Corporation's (BRIDGE) affordable housing project located at 1740 San Pablo Avenue.
2. Authorizing the City Manager or her designee to execute all original or amended documents or agreements to effectuate this action.
Financial Implications: See report
Contact: Scott Gilman, Health, Housing, and Community Services, (510) 981-5400
Action: Adopted Resolution No. 71,403–N.S.

24. Revenue Grant Agreement: Funding Support from the State of California to Conduct Public Health Services
From: City Manager
Recommendation: Adopt a Resolution authorizing the City Manager or her designee to submit grant agreements to the State of California, to accept grant funding, and execute any resultant revenue agreements and amendments to conduct public health promotion, protection, and prevention services for the Maternal, Child and Adolescent Health (MCAH) Program in the projected amount of $375,000 for FY 2025.
Financial Implications: See report
Contact: Scott Gilman, Health, Housing, and Community Services, (510) 981-5400
Action: Adopted Resolution No. 71,404–N.S.

25. Revenue Grant Agreements: Funding Support from Alameda County to Conduct Public Health Services
From: City Manager
Recommendation: Adopt three Resolutions authorizing the City Manager or her designee to submit grant agreements to Alameda County, to accept the grants, and execute any resultant revenue agreements and amendments to conduct public health promotion, protection, and prevention services for the following four revenue agreements:
1. Berkeley High School and Berkeley Technology Academy Health Center Programs in the projected amount of $183,918 for Fiscal Year 2025.
2. School Linked Health Services Program (Measure A Funding) in the projected amount of $200,011 for Fiscal Year 2025.
3. Tobacco Prevention Program in the projected amount of $81,329 for Fiscal Year 2025.
Financial Implications: See report
Contact: Scott Gilman, Health, Housing, and Community Services, (510) 981-5400
Action: Adopted Resolution No. 71,405–N.S. (Berkeley High), Resolution No. 71,406–N.S. (School Linked), Resolution No. 71,407–N.S. (Tobacco Prevention).

Consent Calendar

26. Memorandum of Understanding: SEIU Local 1021 Maintenance & Clerical Chapters

From: City Manager

Recommendation: Adopt a Resolution 1) approving a successor Memorandum of Understanding (hereafter referred to as "MOU") with the Service Employees International Union Local 1021 Maintenance and Clerical Chapters (hereafter referred to as the "Union") for a three-year term from June 27, 2024 to July 26, 2027 and authorizing the City Manager to execute and implement the terms and conditions of employment set forth in the new MOU and to make non-substantive edits to the format and language of the MOU in alignment with the tentative agreement, and conforming to legal requirements; and 2) approving a new Classification and Salary table for SEIU Local 1021 Maintenance and Clerical Chapter classifications that implement the salary adjustments reflected in the new MOU and supersede prior salary resolutions.

The terms of the proposed 2024-2027 MOU are within the parameters of authority approved by Council in closed session.

Financial Implications: See report

Contact: Aram Kouyoumdjian, Human Resources, (510) 981-6800

Action: Adopted Resolution No. 71,408–N.S. including materials submitted in Supplemental Communications Packet #2 from the City Manager.

27. Unrepresented Employee Group Salaries, Longevity Differential, and Vision Insurance

From: City Manager

Recommendation: Adopt a Resolution approving salary adjustments, modification of the longevity differential, and the addition of vision insurance coverage for specified units of employees in the Unrepresented Employee Group and authorizing the City Manager to make edits to the Unrepresented Employee Manual in alignment with the Resolution, and to execute and implement the terms and conditions of employment set forth in the new Unrepresented Employee Manual.

The terms of the proposed 2024-2027 changes are within the parameters of authority approved by Council in closed session

Financial Implications: See report

Contact: Aram Kouyoumdjian, Human Resources, (510) 981-6800

Action: Adopted Resolution No. 71,409–N.S. including materials submitted in Supplemental Communications Packet #2 from the City Manager.

Consent Calendar

28. Memorandum of Understanding: Berkeley EMS Professionals
From: City Manager
Recommendation: Adopt a Resolution 1) approving a new Memorandum of Understanding (MOU) with the Berkeley EMS Professionals (IAFF Local 1227) for a three-year term from July 1, 2023 through June 30, 2026 and authorizing the City Manager to execute and implement the terms and conditions of employment set forth in the new MOU; and 2) approving a new Classification and Salary table for EMS Professionals classifications that implements the salary adjustments reflected in the new MOU.
The terms of the proposed 2023-2026 MOU are consistent with those of the Berkeley Fire Fighters Association (BFFA) and within the parameters of authority approved by Council in closed session.
Financial Implications: See report
Contact: Aram Kouyoumdjian, Human Resources, (510) 981-6800
Action: Adopted Resolution No. 71,410–N.S. including materials submitted in Supplemental Communications Packet #2 from the City Manager.

29. New Contract: Accela, Inc Software Upgrade and Maintenance
From: City Manager
Recommendation: Adopt a Resolution authorizing the City Manager to enter into a new Contract with Accela, Inc., for software upgrade and maintenance to their modern platform for a total not to exceed $1,324,193 from July 1, 2024 to June 30, 2027
Financial Implications: See report
Contact: Kevin Fong, Information Technology, (510) 981-6500
Action: Adopted Resolution No. 71,411–N.S.

30. AHEAD, Inc: Using the California Department of General Services' (DGS) Software Licensing Program (SLP) for Software License Purchases
From: City Manager
Recommendation: Adopt a Resolution authorizing the City Manager to increase spending authority with AHEAD, Inc. ("AHEAD") for the purchase of Varonis subscription software licenses, utilizing pricing and contracts, amendments, and extensions from the California Department of General Services (DGS) Software Licensing Program (SLP) increasing the amount by $550,890 for a total amount not-to-exceed $973,804.51 and the period beginning January 31, 2023 through September 28, 2025.
Financial Implications: See report
Contact: Kevin Fong, Information Technology, (510) 981-6500
Action: Adopted Resolution No. 71,412–N.S.

Consent Calendar

31. FY 2025 Special Tax Rate: Fund the Provision of Library Services
From: City Manager
Recommendation: Adopt the Resolution to recommend that the Berkeley City Council set the FY 2025 tax rate for funding the provision of Library Services in the City of Berkeley at $0.2800 (28.00 cents) per square foot for dwelling units and $0.4233 (42.33 cents) per square foot for industrial, commercial, and institutional buildings.
Financial Implications: See report
Contact: Tess Mayer, Library, (510) 981-6100; Henry Oyekanmi, Finance, (510) 981-7300
Action: Adopt first reading of Ordinance No. 7,927–N.S. Second reading scheduled for July 23, 2024.

32. Grant Application: California Fire Foundation-Camps Wildfire Response Equipment
From: City Manager
Recommendation: Adopt a Resolution authorizing the City Manager to submit a California Fire Foundation grant application in the amount up to $25,000; to accept the grant; to execute any resultant revenue agreements and amendments; and authorizing the implementation of the project and appropriation of funding for related expenses, subject to securing the grant.
Financial Implications: See report
Contact: Scott Ferris, Parks, Recreation and Waterfront, (510) 981-6700
Action: Adopted Resolution No. 71,413–N.S.

33. Audit Recommendation Status - Berkeley Police: Improvements Needed to Manage Overtime and Security Work for Outside Entities *(Reviewed by the Budget & Finance Committee)*
From: City Manager
Recommendation: *Policy Committee Recommendation: No final action taken. Item is automatically returning to the Council agenda pursuant to the time limit for items referred to policy committees.*
Financial Implications: see report
Contact: Jennifer Louis, Police, (510) 981-5900
Action: Report received and filed.

34. Approving Proposed Projects Anticipated to be paid for by the State's Road Maintenance and Rehabilitation Account Funds for FY 2024-25
From: City Manager
Recommendation: Adopt a Resolution approving a proposed list of projects that will utilize funding from the State of California's Road Maintenance and Rehabilitation Account, and authorize the City Manager to submit the proposed list to the California Transportation Commission.
Financial Implications: See report
Contact: Terrance Davis, Public Works, (510) 981-6300
Action: Adopted Resolution No. 71,414–N.S.

Consent Calendar

35. Purchase Order: WEX Fuel Card Program for Fueling of City Vehicles
From: City Manager
Recommendation: Adopt a Resolution satisfying requirements of City Charter Article XI Sections 67.2 allowing the City to participate in Sourcewell contract bid procedures, and authorizing the City Manager to execute a multi-year purchase order for the WEX Fuel Card Program for fueling City vehicles in an amount not to exceed $1,500,000 through June 30th, 2029.
Financial Implications: See report
Contact: Terrance Davis, Public Works, (510) 981-6300
Action: Adopted Resolution No. 71,415–N.S.

36. Contract: Bay Construction Co. for the Second Street STAIR Center Site Improvements and Shelter Units Project
From: City Manager
Recommendation: Adopt a Resolution:
1. Approving plans and specifications for Second Street STAIR Center Site Improvements and Shelter Units Project, Specification No. 23-11603-C;
2. Accepting the bid of Bay Construction Co. as the lowest responsive and responsible bidder; and
3. Authorizing the City Manager to execute a contract and any amendments, extensions or other change orders until completion of the project in accordance with the approved plans and specifications, for an amount not to exceed $1,069,200, which includes a contingency of $97,200.
Financial Implications: See report
Contact: Terrance Davis, Public Works, (510) 981-6300
Action: Adopted Resolution No. 71,416–N.S.

37. Accepting Grant Funds from the U.S. Environmental Protection Agency for West Berkeley Aquatic Park Stormwater Improvement Project
From: City Manager
Recommendation: Adopt a Resolution: Authorizing the City Manager to execute a $1.5M grant agreement with the U.S. Environmental Protection Agency (EPA) to plan, design, and construct a bioretention garden for the Channing Way Micro-Watershed and the installation of two Hydrodynamic separators on the Bancroft Street culvert and Channing Way.
Financial Implications: See report
Contact: Terrance Davis, Public Works, (510) 981-6300
Action: Adopted Resolution No. 71,417–N.S.

Consent Calendar

38. Grant Acceptance: Alameda CTC CIP 2024 Adeline Corridor Transportation Improvements
From: City Manager
Recommendation: Adopt a Resolution accepting funds from the Alameda County Transportation Commission (CTC) for the Adeline Street Transportation Improvements Project.
Financial Implications: See report
Contact: Terrance Davis, Public Works, (510) 981-6300
Action: Adopted Resolution No. 71,418–N.S.

39. Contract: B Brothers Construction, Inc. for the West Berkeley Service Center Improvements Project
From: City Manager
Recommendation: Adopt a Resolution:
1. Approving plans and specifications for West Berkeley Service Center Improvements Project, Specification No. 21-11604-C;
2. Accepting the bid of B Brothers Construction, Inc. as the lowest responsive and responsible bidder; and
3. Authorizing the City Manager to execute a contract and any amendments, extensions or other change orders until completion of the project in accordance with the approved plans and specifications, for an amount not to exceed $1,461,394, which includes a contingency of $145,616.
Financial Implications: See report
Contact: Terrance Davis, Public Works, (510) 981-6300
Action: Adopted Resolution No. 71,419–N.S.

40. Contract: Edgeworth Integration, LLC for Installation of Security Cameras at Council-Approved Intersections; and Authorizing Additional External Fixed Video Surveillance Cameras *(Continued from June 14, 2024)*
From: City Manager
Recommendation:
1. Adopt a Resolution authorizing the City Manager to execute a contract with Edgeworth Integration, LLC for purchase and installation of External Fixed Video Surveillance Cameras at fifteen council-approved locations, for an amount not to exceed $850,000.
2. Adopt a Resolution authorizing the installation of additional External Fixed Video Surveillance Cameras under this contract scope should they be approved by City Council, included in the Surveillance Policy and funding appropriated.
Financial Implications: See report
Contact: Terrance Davis, Public Works, (510) 981-6300
Action: Adopted Resolution No. 71,420–N.S. as revised in Supplemental Communications Packet #1 by Public Works.
Vote: Ayes – Kesarwani, Taplin, Bartlett, Tregub, Wengraf, Humbert, Arreguin; Noes – Lunaparra; Abstain – Hahn.

Consent Calendar

41. Adopt a Resolution Supporting the Bay Area Housing Finance Authority's 2024 Regional Affordable Housing Bond
From: Housing Advisory Commission
Recommendation: Adopt a Resolution supporting the Bay Area Housing Finance Authority's (BAHFA's) 2024 Regional Affordable Housing Bond.
Financial Implications: See report
Contact: Anna Cash, Commission Secretary, HHCS, (510) 981-5403
Action: Adopted Resolution No. 71,421–N.S.

42. Appointment of Ajay Krishnan to Mental Health Commission for the City of Berkeley
From: Mental Health Commission
Recommendation: Adopt a Resolution appointing: Ajay Krishnan as a representative of the General Public Interest Category to complete his first 3-year term beginning June 25, 2024 and ending June 24, 2027.
Financial Implications: See report
Contact: Jamie Works-Wright, Commission Secretary, (510) 981-5400
Action: Adopted Resolution No. 71,422–N.S.

43. Allocation of funds for a Nexus Study to develop a Parks Impact Fee for new developments
From: Parks, Recreation and Waterfront Commission
Recommendation: To provide for the foreseeable new park and recreation needs generated by the City's assigned (RHNA) population growth, the Parks, Recreation and Waterfront Commission recommends that the City Council allocate $100,000 to fund a Nexus Study, in the FY24/25 Budget, as a first step toward adopting a Parks Impact Fee for new developments.
Financial Implications: See report
Contact: Roger Miller, Commission Secretary, (510) 981-6700
Action: Approved recommendation.
Vote: Ayes – Bartlett, Tregub, Hahn, Wengraf, Lunaparra, Humbert, Arreguin; Noes – Kesarwani; Abstain – Taplin.

Council Consent Items

44. Front Row Festival: Relinquishment of Council Office Budget Funds to General Fund and Grant of Such Funds
From: Mayor Arreguin (Author), Councilmember Hahn (Co-Sponsor)
Recommendation: Adopt a Resolution approving the expenditure of an amount not to exceed $500 per Councilmember including $500 from Mayor Arreguin to the Downtown Berkeley Association for their Front Row Festival with funds relinquished to the City's general fund for this purpose from the discretionary Council Office Budgets of Mayor Arreguin and any other Councilmembers who would like to contribute.
Financial Implications: See report
Contact: Jesse Arreguin, Mayor, (510) 981-7100
Action: Adopted Resolution No. 71,423–N.S. revised to include contributions from the following Councilmembers up to the amounts listed: Councilmember Hahn - $300; Councilmember Bartlett - $200; Councilmember Humbert - $500; Councilmember Taplin - $500; Councilmember Tregub - $300; Vice-Mayor Wengraf - $500.

45. Support for ACA 14 – The Basic Labor Standards at the University of California Act
From: Mayor Arreguin (Author), Councilmember Hahn (Co-Sponsor), Councilmember Bartlett (Co-Sponsor)
Recommendation: Adopt a Resolution in support of ACA 14 (Ortega) – The Basic Labor Standards at the University of California Act. Send copies of the Resolution to Governor Gavin Newsom, State Senator Nancy Skinner, and Assemblymembers Buffy Wicks and Liz Ortega.
Financial Implications: See report
Contact: Jesse Arreguin, Mayor, (510) 981-7100
Action: Councilmember Lunaparra added as a co-sponsor. Adopted Resolution No. 71,424–N.S.

Council Consent Items

46. Accepting grant funding of $100,000 from San Francisco Foundation and engage Planet DMA (DBA DMA INK) in consulting work associated with the Equitable Black Berkeley (EBB) Initiative and execute a new contract with Gail McGuire to support EBB community engagement
From: Mayor Arreguin (Author), Councilmember Hahn (Co-Sponsor)
Recommendation: Adopt a Resolution authorizing the City Manager to:
1. Receive $100,000 of grant funds from the San Francisco Foundation (SFF) (see Attachment #2) for project support and implementation for the Equitable Black Berkeley (EBB) Initiative;
2. Approve a PO with DMA INK (aka "DMA") and the Mayor's Office for services associated with supporting EBB for a total amount not to exceed $45,000; and
3. Execute a contract with the independent contractor between the Mayor's Office and Gail McGuire to support EBB's community engagement efforts at a weekly rate not to exceed $2,000 for twelve weeks.
Financial Implications: See report
Contact: Jesse Arreguin, Mayor, (510) 981-7100
Action: Councilmember Bartlett added as a co-sponsor. Adopted Resolution No. 71,425–N.S.

47. Contract No. 32000196 Amendment: Szabo & Associates for Communications Consulting Services
From: Mayor Arreguin (Author)
Recommendation: Adopt a Resolution authorizing the City Manager to amend Contract No. 32000196 with Szabo & Associates for communications consulting services for the Mayor's Office, increasing the contract amount by $32,500 for a new total not to exceed $336,000, extending the contract to November 30, 2024.
Financial Implications: See report
Contact: Jesse Arreguin, Mayor, (510) 981-7100
Action: Adopted Resolution No. 71,426–N.S.

48. Downtown Berkeley Pride on the Plaza: Relinquishment of Council Office Budget Funds from General Funds and Grant of Such Funds
From: Councilmember Taplin (Author), Mayor Arreguin (co-sponsor), Councilmember Lunaparra (co-sponsor)
Recommendation: Adopt a Resolution approving the expenditure of an amount not to exceed $500 per Councilmember, including $500 from the author and co-sponsors, to support the Downtown Berkeley "Pride on the Plaza" event.
Financial Implications: See report
Contact: Terry Taplin, Councilmember, District 2, (510) 981-7120
Action: Councilmember Kesarwani added as a co-sponsor. Adopted Resolution No. 71,427–N.S. revised to include contributions from the following Councilmembers up to the amounts listed: Councilmember Hahn - $500; Councilmember Bartlett - $200; Councilmember Humbert - $500; Councilmember Tregub - $500; Councilmember Kesarwani - $100; Vice-Mayor Wengraf - $500.

Action Calendar

49. Reserving $24.5 Million to Support the Development of Affordable Housing at the North Berkeley BART Site
From: City Manager
Recommendation: Adopt a Resolution:
1. Reserving $24.5 Million for the following affordable housing developments at the North Berkeley BART (NBB) site: a) NBB BRIDGE Phase 1 Project (BRIDGE Housing Corporation) at $10,657,975; b) NBB EBALDC Project (East Bay Asian Local Development Corporation) at $5,473,534; and c) NBB BRIDGE Insight PSH Project (BRIDGE Housing Corporation and Insight Housing) at 8,368,491.
2. Waiving Section I.A.1 of the Housing Trust Fund Guidelines for Applicant Experience for Insight Housing.
3. Authorizing the City Manager or designee to disburse up to $2M of the $24.5M reservation for predevelopment, if the development is unsuccessful in securing predevelopment funding from the Metropolitan Transportation Commission's Priority Sites Program.
4. Authorizing the City Manager or designee to execute all original or amended documents or agreements to effectuate this action.
Financial Implications: See report
Contact: Scott Gilman, Health, Housing, and Community Services, (510) 981-5400
Action: Moved to Consent Calendar. Adopted Resolution No. 71,428–N.S. including revised material in Supplemental Communications Packet #1 from Health, Housing, and Community Services.

50. Approval of the North Berkeley BART Affordable Housing Compliance Plan
From: City Manager
Recommendation: Adopt a Resolution:
1. Approving the North Berkeley BART Affordable Housing Compliance Plan.
2. Authorizing the City Manager or her designee to execute all original or amended documents or agreements to effectuate this action.
Financial Implications: See report
Contact: Scott Gilman, Health, Housing, and Community Services, (510) 981-5400
Action: Moved to Consent Calendar. Adopted Resolution No. 71,429–N.S.

Action Calendar – Public Hearings

51. Levy and Collection of Fiscal Year 2025 Street Lighting Assessments
From: City Manager
Recommendation: Conduct a public hearing and upon conclusion adopt Resolutions confirming the assessments for the Berkeley Street Lighting Assessment District No. 1982-1 and the Street Lighting Assessment District 2018, approving the Engineer's Reports, and authorizing the levying and collection of assessments in Fiscal Year 2025.
Financial Implications: See report
Contact: Terrance Davis, Public Works, (510) 981-6300

Public Testimony: The Mayor opened the public hearing. 1 speaker.
M/S/C (Arreguin/Hahn) to close the public hearing.
Vote: All Ayes.

Action: M/S/C (Arreguin/Hahn) to:
1. Adopt Resolution No. 71,430–N.S. (District No. 1982-1)
2. Adopt Resolution No. 71,431–N.S. (District 2018)
Vote: All Ayes.

52. Approval and Levy of 2018 Clean Stormwater Fee in FY 2025
From: City Manager
Recommendation: Conduct a public hearing and upon conclusion adopt a Resolution approving the proposed adjusted fees for the 2018 Clean Stormwater Fee and ordering the levy of the fees in Fiscal Year 2025.
Financial Implications: See report
Contact: Terrance Davis, Public Works, (510) 981-6300

Public Testimony: The Mayor opened the public hearing. 2 speakers.
M/S/C (Arreguin/Hahn) to close the public hearing.
Vote: All Ayes.

Action: M/S/C (Arreguin/Hahn) to adopt Resolution No. 71,432–N.S.
Vote: All Ayes.

Action Calendar – Public Hearings

53. Fiscal Years 2025 & 2026 Biennial Budget Adoption
From: City Manager
Recommendation: Conduct a public hearing and upon conclusion:
1. Adopt the Fiscal Years 2025 & 2026 ("FY25 and FY26") Biennial Budget as contained in the City Manager's FY25 & FY26 Proposed Biennial Budget, and as amended by subsequent Council action.
2. Authorizing the City Manager to provide applicable advances to selected community agencies receiving City funds in FY25, as reflected in Attachment 2 to the report, and as amended by subsequent Council action.
Financial Implications: See report
Contact: Sharon Friedrichsen, Budget Manager, (510) 981-7000

Action: M/S/C (Arreguin/Tregub) to accept supplemental material from the City Manager for Item 53.
Vote: Ayes – Kesarwani, Taplin, Bartlett, Tregub, Hahn, Lunaparra, Humbert, Arreguin; Noes – None; Abstain – None; Absent – Wengraf.

Action: M/S/C (Arreguin/Hahn) to suspend the rules and extend the meeting to 11:30 p.m.
Vote: All Ayes.

Action: M/S/C (Arreguin/Hahn) to suspend the rules and extend the meeting to 11:45 p.m.
Vote: All Ayes.

Action: M/S/C (Arreguin/Hahn) to suspend the rules and extend the meeting to 12:00 a.m.
Vote: All Ayes.

Public Testimony: The Mayor opened the public hearing. 34 speakers.

Action: M/S/C (Arreguin/Hahn) to 1) adopt Resolution No. 71,433–N.S. as proposed in the materials provided by the City Manager and accepted at the meeting by the Council, including additional allocations of $200,000 in FY 2026 for food insecurity, $670,240 in FY 2025 & 2026 for Legislative Aides funded at the top step; and adding $150,000 for security cameras in District 8 and District 3; and 2) Refer to the City Manager to develop and require annual financial reports by community agencies receiving funds outside the RFP process, including itemized use of City funds; City staff may provide basic technical assistance if needed by the agencies.

For the requested allocations list, Market Match is removed, and the remaining unfunded elements of the CARE Program are carried forward to AAO#1.

Vote: All Ayes.

Action Calendar

54. FY 2025 Annual Appropriations Ordinance
From: City Manager
Recommendation: Adopt first reading of an Ordinance adopting the FY 2025 Annual Appropriations Ordinance (AAO) in the amount of $776,943,545 (gross appropriations) and $670,897,257 (net appropriations).
Financial Implications: See Report
Contact: Sharon Friedrichsen, Budget Manager, (510) 981-7000
Action: 0 speakers. M/S/C (Arreguin/Humbert) to adopt the first reading of Ordinance No. 7,926–N.S. with revised appropriations of $793,319,711 in Gross Revenue Appropriated, and $686,125,119 in Net Revenue Appropriated. Second reading scheduled for July 9, 2024.
Vote: All Ayes.

55. Borrowing of Funds and the Sale and Issuance of FY 2024-25 Tax and Revenue Anticipation Notes
From: City Manager
Recommendation: Adopt a Resolution approving the borrowing of $36,000,000 and the sale and issuance of Fiscal Year 2024-25 Tax and Revenue Anticipation Notes.
Financial Implications: See report
Contact: Henry Oyekanmi, Finance, (510) 981-7300
Action: 2 speakers. M/S/C (Wengraf/Hahn) to adopt Resolution No. 71,434–N.S.
Vote: All Ayes.

56. Adopt an Ordinance Adding Chapter 12.75 to the Berkeley Municipal Code to Establish Protections Relating to Horses Held, Owned, Used, Exhibited, or Otherwise Kept for Racing or Other Sport, Entertainment or Profit *(Continued from January 16, 2024) (Reviewed by the Health, Life Enrichment, Equity, & Community Committee)*
From: Councilmember Harrison (Author)
Recommendation: Adopt an Ordinance Adding Chapter 12.75 to the Berkeley Municipal Code to Establish Protections Relating to Horses Held, Owned, Used, Exhibited, or Otherwise Kept for Racing or Other Sport, Entertainment or Profit.
Policy Committee Recommendation: Send the item to Council with a qualified positive recommendation to approve the Ordinance with substantial edits and as may be necessary for legal and administrative purposes.
Financial Implications: See report
Contact: Kate Harrison, Councilmember, District 4, (510) 981-7140
Action: Moved to the Consent Calendar and take no action on the item.

Action Calendar

57. Accept the Risk Analysis for Long-Term Debt (Bonding Capacity) Report provided by Government Finance Officers Association *(Reviewed by the Budget & Finance Committee)*

From: City Manager

Recommendation: Accept the report titled 'Risk-Based Analysis and Stress Test of Long-Term Debt Affordability' as provided by the Government Finance Officers Association (GFOA). This report is based on their research and development of a risk-modeling tool to address issuing long-term debt related to City of Berkeley Vision 2050.

On April 26, 2022, the City Council referred this item to the City Manager and Budget & Finance Committee to return to Council with recommendations or analysis on as many of the following items as possible by October 2022, if feasible. 1) Consideration of reserves policies for operational funds other than the General Fund; 2) Potential reduction of the maximum indebtedness rate from 15% of assessed property value down to 4-8% range; 3) A new policy to not incur indebtedness when interest rates go above 5% or a different specific threshold; 4) Tools for increased transparency for taxpayers; 5) Updated report and discussion of pension and healthcare costs; 6) Refer the full Report to the Budget & Finance Committee for consideration.

Policy Committee Recommendation: No final action taken. Item is automatically returning to the Council agenda pursuant to the time limit for items referred to policy committees.

Financial Implications: None

Contact: Henry Oyekanmi, Finance, (510) 981-7300

Action: Moved to Consent Calendar. Referred to the Budget & Finance Committee.

Action Calendar

58. Adopt an Ordinance Adding a New Chapter 12.01 to the Berkeley Municipal Code Establishing Emergency Greenhouse Gas Limits, Process for Updated Climate Action Plan, Monitoring, Evaluation, Reporting and Regional Collaboration *(Reviewed by the Facilities, Infrastructure, Transportation, Environment & Sustainability Committee)*
From: Councilmember Harrison (Author), Councilmember Bartlett (Co-Sponsor), Councilmember Hahn (Co-Sponsor)
Recommendation:
1. Adopt an ordinance adding a new Chapter 12.01 to the Berkeley Municipal Code (BMC) establishing Emergency Greenhouse Gas Limits with an effective date of [ ], 2022.
2. Refer to the FY23-24 Budget Process $[ ] consistent with implementing the requirements of Sections 12.01.040, 12.01.050, 12.01.060.
Policy Committee Recommendation: No final action taken. Item is automatically returning to the Council agenda pursuant to the time limit for items referred to policy committees.
Financial Implications: See report
Contact: Kate Harrison, Councilmember, District 4, (510) 981-7140
Action: Moved to Consent Calendar and take no action on the item.
Vote: Ayes – Kesarwani, Taplin, Bartlett, Hahn, Wengraf, Lunaparra, Humbert, Arreguin; Noes – None; Abstain – Tregub.

59. Referral for Development of Request for Proposal (RFP) to Support Berkeley-Based Non-Profit Food Assistance Providers Serving Food Insecure Households *(Reviewed by the Health, Life Enrichment, Equity, & Community Committee)*
From: Councilmember Kesarwani (Author), Councilmember Humbert (Co-Sponsor), Councilmember Wengraf (Co-Sponsor)
Recommendation: Refer to the City Manager to develop and fund a Request for Proposal (RFP) process to support Berkeley-based non-profit food assistance providers serving food insecure households. Funds are intended for (but not limited to) the following needs:
1. Expansion of capacity to serve more people experiencing food insecurity, such as one-time purchase of equipment;
2. Hiring of additional staff to serve more people; and/or
3. Other emerging needs to be determined.
4. Refer $200,000 annually in funding to the biennial FY 2024-25 to FY 2025-26 budget process to fund qualified proposals resulting from the RFP.
Policy Committee Recommendation: The item referred to City Council with a Qualified Positive recommendation with the amendment of referring the issue of food assistance to the Community Agency RFP process the next time the RFP is developed.
Financial Implications: See report
Contact: Rashi Kesarwani, Councilmember, District 1, (510) 981-7110
Action: Councilmember Bartlett added as a co-sponsor. Moved to Consent Calendar.

Information Reports

60. Voluntary Time Off Program for Fiscal Year 2025
From: City Manager
Contact: Sharon Friedrichsen, Budget Manager, (510) 981-7000
Action: Received and filed.

61. Status Report - Berkeley's Financial Condition (FY 2012 – FY 2021): Pension Liabilities and Infrastructure Need Attention
From: City Manager
Contact: Sharon Friedrichsen, Budget Manager, (510) 981-7000
Action: Received and filed.

62. FY 2024 Second Quarter Investment Report: Ended December 31, 2023
From: City Manager
Contact: Henry Oyekanmi, Finance, (510) 981-7300
Action: Received and filed.

63. FY 2024 Third Quarter Investment Report: Ended March 31, 2024
From: City Manager
Contact: Henry Oyekanmi, Finance, (510) 981-7300
Action: Received and filed.

64. Zero Waste Commission Fiscal Year 2024-25 Work Plan
From: City Manager
Contact: Terrance Davis, Public Works, (510) 981-6300
Action: Received and filed.

Public Comment – Items Not Listed on the Agenda - 0 speakers.

Adjournment

Action: M/S/C (Arreguin/Humbert) to suspend the rules and adjourn the meeting.
Vote: All Ayes.

Adjourned at 11:59 p.m.

Communications

Item 53. Fiscal Years 2025 & 2026 Biennial Budget Adoption
1. Parks, Recreation, and Waterfront Commission
2. Sibyl Chen
3. Courtney Pal on behalf of Dan Sawislak, Executive Director, Resources for Community Development
4. Ellen Lake
5. Daniel
6. Allison Foster

7. Maddie Emodi
8. Jane Diamond
9. Jake Teitelbaum
10. Cheryl Newbrough
11. Patrick Tool and Michelle Rostampour
12. Cheryl Brewster
13. Susan McKay

Middle East Conflict

14. Mohammed Harara
15. Sheela Jivan
16. Aylin Beyce
17. Erwan Illian (7)
18. russbumper (6)

Southside Complete Streets Project

19. L.
20. Hannah
21. Tom
22. D.
23. B.S. bikedelly
24. An angry resident
25. William Kan

2274 Shattuck Ave Project

26. Charlene M. Woodcock
27. LiHui Tsai
28. Anjali Rojas
29. Lynn Sherrell

People's Park

30. Meg Mav
31. Olivia Page
32. Aleena Karim

Hard Hats

33. Kelly Elena MacDonald on behalf of Andreas Cluver, Secretary-Treasurer of the Building & Construction Trades Council of Alameda County

Cameras

34. Simone Arpaio

Animal Care Services

35. Liz Dodge

Smoking

36. Anthony John DeMaria

Speed Bump

37. Sutapa Mallik

Crossing Sign
38. Octavio

Campaign Finance Complaint
39. Tom Luce on behalf of J. George Lippman

City Manager Separation Package
40. Becca Freed

Building in South Berkeley
41. Lynn Cooper

2113-2115 Kittredge Street – Use Permit #ZP2022-0144
42. Steven Schuyler

Video Recording Planning Commission Meetings
43. Berkeley Public Eye

First Congregational Church of Berkeley UCC's 150th Anniversary
44. Rev. Molly Baskette

Police Accountability Board
45. Jose D. Murillo, Office of the Director of Police Accountability

Friends of the Library Annual Membership Meeting
46. Cathy Brown

Daylight Strawberry Creek
47. Luka Henrie-Naffaa

Lorin and Gilman Parking Benefit District Formation
48. Liz Lisle and YaVette Holts

Appointment Recommendations
49. Mary-Claire Katz on behalf of Mary Behm-Steinberg, Chair, Human Welfare and Community Action Commission

Repaving on Bancroft Way
50. Adam

Op Ed- Breaking Barriers
51. Aaron

Commission Vacancies
52. Samuel J. Harvey on behalf of Kitt Saginor, Chair, Fair Campaign Practices Commission/Open Government Commission

Traffic Safety
53. Tucker Pinochi

Fulton Neighborhood Association Comments and Concerns
54. Dan Auten

Reusable Container Pilot Program
55. Sophie Horvath and Joshua Swift Rawal

Fire Prevention and Policing

56. Barbara Gilbert

Peace and Justice Commissioner
57. Brandon Head

Insurance Concerns
58. Susan Wengraf

Building Concerns
59. Mike Vandeman

Berkeley Restaurant Inspection Results
60. DL

Neighborhood Trash Concern
61. Annie Parks

Housing Concern
62. Keith H Bayne(29)

Berkeley Union Bargaining
63. Angela Allan
64. Kelli Black
65. Anna Cash
66. Valerie Nguyen
67. Marc Patnode
68. E. Janney Lockman
69. Manreet Gill
70. Nico Ledwith
71. Christina Rea
72. Ammon Reagan
73. Conor Murphy
74. Joel Mandella
75. Larry Mandella
76. Jocelyn Goldsmith-De Sena
77. Julia Wiswell
78. S. Julia Po
79. Miguel Cedeno
80. Kat Wickham
81. Kayte Reagan-Randive
82. Jacob Kahn
83. Tino Ratliff
84. David Fang
85. Alice La Pierre
86. Adrian Merry
87. Jose Luis Alonso(2)
88. Michael Roshal

Tenant Opportunity to Purchase Act (TOPA)
89. Scott and Kathryn E. Hambly(2)
90. Gail Martin(2)

91. Jenny Johnston
92. Frances Weekes
93. Erin Chalmers
94. Steven Chan
95. Alison Simon

Fluoridated Water
96. Phoebe Thomas Sorgen(3)
97. Jenny Miller

Summer Swim
98. Summer Brenner

Newsletter
99. Vivian Warkentin

URL's Only
100. Russbumper (4)

Supplemental Communications and Reports 1

Item #40: Contract: Edgeworth Integration, LLC for Installation of Security Cameras at Council-Approved Intersections; and Authorizing Additional External Fixed Video Surveillance Cameras
101. Revised material submitted by Public Works Department

Item #49: Reserving $24.5 Million to Support the Development of Affordable Housing at the North Berkeley BART Site
102. Revised material submitted by Health, Housing, and Community Services Department

Item #53: Fiscal Years 2025 & 2026 Biennial Budget Adoption
103. Eve Van Buren
104. Andres
105. Susan Bustamante
106. Cristina Ibarra
107. Tom Bates

Supplemental Communications and Reports 2

Item #22: Approving the Revised Operating Budget for Golden Bear Homes
108. Meryl & Aimee

Item #26: Memorandum of Understanding: SEIU Local 1021 Maintenance & Clerical Chapters
109. Revised material submitted by Human Resources Department

Item #27: Unrepresented Employee Group Salaries, Longevity Differential, and Vision Insurance
110. Revised material submitted by Human Resources Department

Item #28: Memorandum of Understanding: Berkeley EMS Professionals

111. Revised material submitted by Human Resources Department

Item #49: Reserving $24.5 Million to Support the Development of Affordable Housing at the North Berkeley BART Site

112. Michel St. Pierre
113. Ann Ostrander
114. Libby Lee-Egan
115. Julia Raifman
116. Bert Ayers III
117. Katherine Silver
118. Chris Harrelson
119. Cliff Moser
120. Connie Clausen
121. Tawny Reynolds
122. Sarah Bell
123. Tess Fruge
124. Alfred
125. Theo Posselt
126. Frances C. Moore
127. Chris Lee-Egan

Item #53: Fiscal Years 2025 & 2026 Biennial Budget Adoption

128. Janaki Costello
129. Elizabeth Johnson
130. Carlos Anotonio Aceves
131. Jennifer Henry
132. Esme Howard
133. Julia Madore
134. Meredith Stout
135. Deborah Matthews
136. Teresa Clarke
137. Dona Bretherick
138. Bruce H. Feingold
139. Claude Fischer

Item #54: FY 2025 Annual Appropriations Ordinance

140. Revised material submitted by City Manager Department

Urgency Item: Contract Amendment: California Lake Research Partners, Inc. for Community Survey

141. Urgent Item, submitted by City Manager's Office

Supplemental Communications and Reports 3

Item #22: Approving the Revised Operating Budget for Golden Bear Homes

142. Virginia Browning
143. Christopher Kroll

144. V. Sommer
145. 19 Similarly-worded form letters

Item #26: Memorandum of Understanding: SEIU Local 1021 Maintenance & Clerical Chapters
146. Moni T. Law

Item #40: Contract: Edgeworth Integration, LLC for Installation of Security Cameras at Council-Approved Intersections; and Authorizing Additional External Fixed Video Surveillance Cameras
147. Fred Krieger

Item #43: Allocation of funds for a Nexus Study to develop a Parks Impact Fee for new developments
148. Allen Abshez

Item #49: Reserving $24.5 Million to Support the Development of Affordable Housing at the North Berkeley BART Site
149. Shiven Sankalia
150. Barry Fike

Item #53: Fiscal Years 2025 & 2026 Biennial Budget Adoption
151. Supplemental material, submitted by City Manager's Office
152. Presentation, submitted by City Manager's Office
153. Jasmine Sozi
154. Judy MacLean
155. Amanda Chang, on behalf of Ellen Wu, Executive Director, Urban Habitat
156. Tracy
157. Courtney
158. Ben Gerhardstein, Liza Lutzker, Charles Siegel
159. Julia
160. Tom Bates
161. Patricia Zappia
162. Phyllis Orrick
163. Leah Redwood (2)
164. Loni Hancock
165. Leo

Item #60: Voluntary Time Off Program for Fiscal Year 2025
166. Barbara Gilbert

Miscellaneous Communications
167. Eid
168. Black Repertory Group Theater Project